MY WEALTH CHOICE

Instructions for the Completion of Your Documents

DN Silver Lining Super Fund – Binding Death Benefit Nomination

These forms relate to and are prepared with reference to the standard Acis SMSF trust deed Version 2023.1. If the fund is not using the standard Acis SMSF trust deed Version 2023.1 professional advice should be sought to ensure any Binding Death Nomination (lapsing or non-lapsing) is:

(a) Permitted by the governing rules of the fund; and

(b) Complies with the formalities for making a Binding Death Nomination (lapsing or non-lapsing) set out in the relevant trust deed.

Complete the Form
Please make sure you complete the BDBN form when received to ensure that the names of all beneficiaries, the qualification of the beneficiaries to receive benefits and the percentage of the member's benefit to be paid to each beneficiary are inserted on the form in the spaces provided.

Fund Rules
The Nomination must comply with all rules for the making of a binding death benefit nomination in the Fund's Trust Deed. Failure to comply with those rules may render the Nomination invalid.

Estate Planning
The Nomination should only be completed after obtaining professional estate planning advice in relation to the content and effect of a binding death nomination. The Nomination must operate consistently with the will and the testamentary wishes of the relevant Member.

The Trustee
A signed and dated copy of the Nomination should be forwarded to the Trustee immediately. The Trustee may need to formally accept the Nomination in order for it to be effective.

Execution of Documents
Please carefully check the details and execute the documents as indicated. You must ensure that the nomination is signed, and dated, by the Member in the presence of 2 witnesses, each of whom has turned 18 and neither of whom is a person mentioned in the notice.

Important Note
The enclosed documents have been produced using information which you have supplied. You are responsible for the information included in these documents, and we accept no responsibility for any error, mistake or misunderstanding made in relation to the information supplied by you or its legal, commercial or taxation or other effect.

We do not provide advice in relation to superannuation or pension eligibility, nor do we calculate the amount of any pension the subject of the enclosed documents. Professional advice should be obtained before signing the documents. Accordingly, except to the extent required by law, we do not accept any responsibility other than in relation to the provision of these documents in accordance with your instructions. We do not purport to give advice in relation to the enclosed documents, nor should you construe anything in the enclosed documents or any conversation or correspondence as advice of any kind.

Please contact our office should you have any queries or require any assistance.

Yours faithfully,

mywealthchoice.com.au

Notice of Binding Nomination

DN Silver Lining Super Fund

To: DN Silver Lining Pty Ltd ACN 688 966 378
Trustee

Binding Death Benefit Nomination

I am currently a member of the Fund and, being entitled to make a Binding Death Benefit Nomination in accordance with the Trust Deed for the Fund, I have attached a signed Binding Death Benefit Nomination and acknowledge that the Nomination:

(a) must be in writing;

(b) must be signed, and dated, by me in the presence of 2 witnesses, each of whom has turned 18 and neither of whom is a person mentioned in the Nomination;

(c) must contain a declaration, signed, and dated, by the witnesses stating that the notice was signed by me in their presence;

(d) will not lapse and will continue unless amended or revoked;

(e) may be revoked by written notice to the Trustee at any time;

(f) must contain sufficient details to identify me;

(g) must contain sufficient details to identify the Beneficiaries for each category of benefits.

_____ Dated / /

Essendran Naidoo
Member

Trustee's Statement

DN Silver Lining Super Fund

To: Essendran Naidoo

The Trustee has received your Binding Death Benefit Nomination as follows:

Date of Nomination	/ /
Full Name of Member	Essendran Naidoo
Address	14 Savannah Street Colebee NSW 2761

You are informed that:

(a) the Trustee cannot alter the Member's properly made request, regardless of the consequences or circumstances which might arise subsequent to the Member making a Binding Death Benefit Nomination and so long as that Binding Death Benefit Nomination remains current;

(b) careful consideration should be given to the wording of the Member's Binding Death Benefit Nomination to ensure that the Member's intentions are clearly and legally binding and executable;

(c) you are advised to seek further information and professional advice as to the manner and consequences of the request prior to its being made.

_____ Dated / /

Signed on behalf of the Trustee

NOTE: This Nomination should only be completed after obtaining professional advice in relation to the content and effect of a binding death nomination.

Binding Nomination (Non-Lapsing)

To the Trustee: DN Silver Lining Super Fund

I direct the Trustee to distribute my benefit in the event of my death in accordance with this form. This Nomination revokes any previous Nomination made by me. I acknowledge that I have read and understand the notes below.

This Nomination is in respect of my entire superannuation benefit in the Fund.

Member Details
Full Name: Essendran Naidoo
Address: 14 Savannah Street Colebee NSW 2761

New Nomination

☐ Please pay my entire benefit in accordance with the following table.

Beneficiary Details

Full Name/Description	Relationship	% of Benefit or $ Amount	Form of payment
	☐Spouse ☐ Financial dependent ☐Child ☐ LPR/Executor ☐Interdependent		
	☐Spouse ☐ Financial dependent ☐Child ☐ LPR/Executor ☐Interdependent		
	☐Spouse ☐ Financial dependent ☐Child ☐ LPR/Executor ☐Interdependent		

Where indicating percentages, ensure that the sum of all percentages totals 100% and that the "%" symbol is used. In the event that the sums add to less than 100%, the nomination is still valid in respect of the percentages and beneficiaries indicated.

AND in the event that any of the above beneficiaries predeceases me or does not survive me for 30 days, please pay the share of that beneficiary in accordance with the following table.

Name/description of original beneficiary	Full Name/description of substituted beneficiary	Relationship	% of Benefit or $ Amount	Form of payment
		☐Spouse ☐ Financial dependent ☐Child ☐ LPR/Executor ☐Interdependent		
		☐Spouse ☐ Financial dependent ☐Child ☐ LPR/Executor ☐Interdependent		
		☐Spouse ☐ Financial dependent ☐Child ☐ LPR/Executor ☐Interdependent		

Cancel a Current Nomination

☐ Please cancel my current Nomination and pay benefits in accordance with the above.

Notes:

Only your dependents or LPR are eligible to receive your death benefit. Eligibility of a nominated person is determined at the date of your death. For the purpose of paying a death benefit, a dependent includes:

- a person who is financially dependent upon you at the date of death;
- a child, adopted child, step-child, ex-nuptial child;
- a spouse (including a de facto or same sex spouse) but not a former spouse; or
- a person with whom you have a close personal relationship and share a residence with and one or each of you provides the other with financial support, domestic support and personal care.

A dependent is also a person with whom you have a close personal relationship, but the other requirements detailed above aren't satisfied because either or both of you suffer from physical, intellectual or psychiatric disability.

Member Declaration

I am a Member, or I have applied to become a Member, of DN Silver Lining Super Fund. This Nomination applies only to my interests in this superannuation fund.

I confirm that I understand that:

- if this Nomination is valid at the time of my death, the Trustee must pay the benefits to the persons and in the manner in which I have directed and if this Nomination is not valid or is not received by the Trustee, my death benefit may be paid at the Trustee's discretion;
- this Nomination will not lapse and will continue unless amended or revoked;
- if I cease to be a Member of DN Silver Lining Super Fund, this Nomination ceases to have effect;
- each of the beneficiaries listed above must be my spouse, child, financial dependent, interdependent or the executor of my estate;
- the Trustee has a discretion to distribute or make payments in accordance with this Nomination by transferring or assigning fund assets to nominated beneficiaries.
- I may cancel this Nomination at any time.

DO NOT SIGN UNLESS THERE ARE TWO INDEPENDENT ADULT WITNESSES PRESENT

Member's Signature: _____ Dated: / /

Essendran Naidoo

Witness Declaration

Each witness undersigned, declares that he or she is over 18 years of age, that he or she is not a person mentioned in this Nomination and that this Nomination was signed by the Member in his or her presence.

(Please ensure that the date each of the witnesses signs this form is the same date as the Member signs, otherwise this Nomination will not be valid).

Witness 1

Witness Signature: _____ Dated: / /

Print Name: _____

Witness 2

Witness Signature: _____ Dated: / /

Print Name: _____

Minutes Of Meeting Of Trustee/s

OF: **DN Silver Lining Super Fund**

HELD AT: **14 Savannah Street Colebee NSW 2761**

ON: / /

Present

Essendran Naidoo

as director of DN Silver Lining Pty Ltd ACN 688 966 378

Chairperson

Essendran Naidoo was elected as the Chairperson of the meeting.

Considered

A letter from a Member of the Fund named below enclosing a Binding Death Benefit Nomination made in accordance with the Trust Deed for the Fund in respect of all of the Member's benefits in the Fund.

Full Name of Member	Essendran Naidoo
Address	14 Savannah Street Colebee NSW 2761

Resolved

According to the most recent Fund records available, that the Member is entitled by the Trust Deed for the Fund to make a Binding Death Benefit Nomination.

Resolved

That the Trustee accept the Binding Death Benefit Nomination and be bound by its terms in accordance with the provisions of the Trust Deed for the Fund.

Closure

There being no further business, the meeting was declared closed.

Signed as a correct record

Chairperson

Notice of Acceptance

DN Silver Lining Super Fund

To: Essendran Naidoo

The Trustee has accepted your Binding Death Benefit Nomination as follows:

Date of Nomination	/ /
Full Name of Member	Essendran Naidoo
Address	14 Savannah Street Colebee NSW 2761

Please note that the Binding Death Benefit Nomination:

(a) will not lapse and will continue unless amended or revoked;

(b) may be revoked by the Member by written notice to the Trustee at any time.

_____ Dated / /

Signed on behalf of the Trustee